

CONTRACT: Annex Beechwood MSBKYS Sample Contract

Contract Details

Contract ID	C-009
Vendor	Company/agent
Expiry Date	2026-05-18
Version	v1.0
Status	Active
Risk Level	Medium
Created By	Sridhar
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Contract Content

ANNEX BEECHWOOD MSBKYS SAMPLE CONTRACT

Contract ID: C-009

This Commercial Services Agreement ("Agreement") is entered into as of the Effective Date (defined below) by and between the following parties:

1. PARTIES

This Agreement is made and entered into by and between:

(a) [Vendor Name], a [state/country of incorporation] corporation with its principal place of business at [address] ("Vendor"); and

(b) [Client Name], a [state/country of incorporation] corporation with its principal place of business at [address] ("Client").

Vendor and Client may each be referred to individually as a "Party" and collectively as the "Parties."

2. DEFINITIONS

For the purposes of this Agreement, the following terms shall have the meanings set forth below:

(a) "Effective Date" means the date on which this Agreement is signed by both Parties.

(b) "Services" means the commercial services described in Section 3 (Scope of Services).

(c) "Confidential Information" means any non-public, proprietary, or sensitive information disclosed by one Party to the other under this Agreement.

(d) "Fees" means the amounts payable by Client to Vendor as set forth in Section 5 (Fees and Payment).

3. SCOPE OF SERVICES

Vendor agrees to provide the Services as described in Exhibit A, attached hereto and incorporated by reference. Vendor shall perform the Services in a professional and workmanlike manner and in accordance with applicable industry standards.

4. TERM AND TERMINATION

4.1 Term. This Agreement shall commence on the Effective Date and remain in effect for an initial term of [insert duration] ("Initial Term"). Thereafter, the Agreement shall automatically renew for successive [insert duration] periods unless terminated in accordance with this Section.

4.2 Termination for Convenience. Either Party may terminate this Agreement for any reason upon [insert notice period] written notice to the other Party.

4.3 Termination for Cause. Either Party may terminate this Agreement immediately upon written notice if the other Party materially breaches any provision of this Agreement and fails to cure such breach within [insert cure period] days after receiving written notice of the breach.

4.4 Effect of Termination. Upon termination of this Agreement, Vendor shall cease all Services, and Client shall pay Vendor for all Services rendered up to the effective date of termination.

5. FEES AND PAYMENT

5.1 Fees. Client shall pay Vendor the Fees as set forth in Exhibit B, attached hereto and incorporated by reference.

5.2 Invoicing and Payment. Vendor shall invoice Client on a [monthly/quarterly] basis, and Client shall pay all undisputed invoices within [insert payment terms, e.g., 30 days] of receipt.

5.3 Late Payments. Any undisputed amounts not paid when due shall accrue interest at a rate of [insert percentage, e.g., 1.5%] per month or the maximum rate permitted by law, whichever is lower.

6. CONFIDENTIALITY

6.1 Obligations. Each Party agrees to maintain the confidentiality of the other Party's Confidential Information and to use such information solely for the purposes of performing its obligations under this Agreement.

6.2 Exclusions. Confidential Information does not include information that is (a) publicly available without breach of this Agreement, (b) independently developed by the receiving Party, or (c) disclosed pursuant to legal or regulatory requirements.

7. DATA PROTECTION

Vendor shall comply with all applicable data protection and privacy laws in connection with the performance of the Services. Vendor shall implement and maintain appropriate technical and organizational measures to protect any personal data processed under this Agreement.

8. INTELLECTUAL PROPERTY

8.1 Ownership. Each Party shall retain ownership of its pre-existing intellectual property.

8.2 Deliverables. Any deliverables created by Vendor specifically for Client under this Agreement shall be deemed "Work Product" and shall be owned by Client upon full payment of all Fees. Vendor retains a non-exclusive, royalty-free license to use the Work Product for its internal purposes.

9. WARRANTIES

9.1 Vendor Warranties. Vendor represents and warrants that (a) it has the necessary authority to enter into this Agreement, (b) the Services will be performed in a professional and workmanlike manner, and (c) the

Services will comply with applicable laws and regulations.

9.2 Disclaimer. Except as expressly provided in this Agreement, Vendor disclaims all other warranties, express or implied, including any warranties of merchantability or fitness for a particular purpose.

10. LIABILITY LIMITATION

To the maximum extent permitted by law, neither Party shall be liable to the other for any indirect, incidental, consequential, or punitive damages arising out of or related to this Agreement, even if advised of the possibility of such damages. The total liability of either Party for any claims arising under this Agreement shall not exceed the total Fees paid by Client to Vendor in the [insert time period, e.g., 12 months] preceding the claim.

11. INDEMNITY

11.1 Vendor Indemnity. Vendor shall indemnify, defend, and hold harmless Client from and against any third-party claims, damages, or liabilities arising from Vendor's breach of this Agreement or its gross negligence or willful misconduct.

11.2 Client Indemnity. Client shall indemnify, defend, and hold harmless Vendor from and against any third-party claims, damages, or liabilities arising from Client's breach of this Agreement or its gross negligence or willful misconduct.

12. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of [insert state], without regard to its conflict of laws principles.

13. DISPUTE RESOLUTION

13.1 Negotiation. The Parties shall attempt to resolve any disputes arising under this Agreement through good-faith negotiations.

13.2 Arbitration. If the Parties are unable to resolve a dispute through negotiation within [insert time period, e.g., 30 days], the dispute shall be submitted to binding arbitration in accordance with the rules of [insert arbitration body, e.g., the American Arbitration Association]. The arbitration shall take place in [insert location], and the decision of the arbitrator(s) shall be final and binding.

14. MISCELLANEOUS

14.1 Entire Agreement. This Agreement, including all exhibits, constitutes the entire agreement between the Parties and supersedes all prior agreements or understandings, whether written or oral, relating to its subject matter.

14.2 Amendments. This Agreement may only be amended in writing signed by authorized representatives of both Parties.

14.3 Assignment. Neither Party may assign this Agreement without the prior written consent of the other Party, except in connection with a merger, acquisition, or sale of substantially all of its assets.

14.4 Notices. All notices under this Agreement shall be in writing and delivered to the addresses set forth above or to such other address as a Party may designate in writing.

14.5 Severability. If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

14.6 Waiver. The failure of either Party to enforce any provision of this Agreement shall not constitute a waiver of that provision or any other provision.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

[Vendor Name]

By: _____

Name: _____

Title: _____

Date: _____

[Client Name]

By: _____

Name: _____

Title: _____

Date: _____